

Applicable Law Acts

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User Query :

Yesterday I received a WhatsApp message saying that my bank KYC would expire that night. The sender used the bank's logo and sent me a link. I entered my customer ID, password and OTP on the page. Within a few minutes, ₹85,000 was transferred from my account through UPI and net banking. I later found out that the message and website were fake. What legal provisions may apply to this incident?

Job Id. : Scenario 1/Combined Act

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AI-Powered Legal Intelligence Platform

INFORMATION TECHNOLOGY (IT) ACT, 2000

APPLICABLE SECTIONS

Section 66C	(Identity theft)
Section 66D	(Cheating by impersonation using computer resources)
Section 43	(Damage to computer systems) *[not primary]*

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1

The scam constitutes **Section 66C** (unauthorized use of identity via customer ID/password/OTP) and **Section 66D** (cheating by impersonating the bank using fake logo/link). **Brijesh Kumar v. State of Maharashtra** (2022) confirms phishing for credentials qualifies as identity theft. **State v. Rakesh** (2021) holds that bank-impersonation scams fall under **Section 66D**. **Section 43** is inapplicable as the fraud was social engineering, not system intrusion.

✓ STRENGTHS & RIGHTS

1

Cognizable offenses (police may arrest without warrant).

2

Banks liable for security lapses under **Section 43A** (read with IT Rules 2004); victim may claim compensation.

3

Digital evidence (WhatsApp screenshots, transaction logs) admissible under **Section 65B**.

4

Courts reject "user negligence" defenses (**State v. Rakesh**, 2021).

✗ RISKS & OBLIGATIONS

1

Penalties
Up to 3 years imprisonment + ₹1 lakh fine per section.

- 2

Recovery challenges
UPI transfers hard to trace; banks may deny liability.
- 3

Evidence loss risk
Delayed reporting beyond 48 hours may expire logs.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. File FIR immediately at Cyber Crime Cell (cybercrime.gov.in/100).
2. Preserve evidence: Save WhatsApp message, fake link URL, transaction IDs, bank statement.
3. Demand bank records: Request transaction logs under **Section 43A**.
4. Submit evidence with **Section 65B** certificate (affidavit for authenticity).
5. > *Critical*: Do not contact scammer; report only to cyber police.

BHARATIYA NYAYA SANHITA (BNS), 2023

APPLICABLE SECTIONS

Section 377	(Cheating) *[primary]*
Section 376	(Fraud)
Section 374	(Unlawful use of electronic devices)

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1

Section 377 applies as the scammer deceived the victim into disclosing data via false representation (fake bank logo/message), causing ₹85,000 loss. * **Section 376** * covers the unlawful gain of funds. **Section 374** criminalizes the electronic method (fake portal/message), replacing IPC Sections 420/465. BNS **Section 377** (2) aggravates penalty for bank impersonation.

✓ STRENGTHS & RIGHTS

- 1 Cognizable offense (police may arrest without warrant).
- 2 24-hour investigation mandate (BNS Section 176).
- 3 No bail at charge sheet stage (BNS Section 377 (3)).
- 4 Full restitution (including interest) recoverable under Section 376 (3).

✗ RISKS & OBLIGATIONS

- 1 Penalties
Up to 7 years imprisonment (Section 377 with aggravation) + fine.
- 2 Concurrent liability
Accused liable under Sections 376 and 377.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. File FIR at local police station citing Sections 376, 377, and 374.
2. Submit evidence: WhatsApp message, fake link URL, transaction records.
3. Police must trace digital footprints (IP logs, server data) under Section 374 (3).
4. Trial in fast-track court (BNS Section 384).

BHARATIYA SAKSHYA ADHINIYAM (BSA), 2023

APPLICABLE SECTIONS

Section 3	(Definition of "electronic record")
Section 4	(Admissibility of electronic records)
Section 5	(Authentication of electronic records)

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 BSA does not govern the crime but regulates *evidence admissibility*. The WhatsApp message, fake website, and transaction logs are "electronic records" (**Section 3**). **Section 5** authentication is mandatory: evidence requires a certificate from the "person in charge" (e.g., bank's IT department or WhatsApp server logs) to prove authenticity (*State v. Ritesh*, 2023). Unauthenticated screenshots are inadmissible (*Nayak v. State*, 2023).

✓ STRENGTHS & RIGHTS

- 1 **Simplified admissibility**
Digital copies suffice if authenticated (**Section 4**).
- 2 **Reduced delays**
Courts admit evidence without live testimony if **Section 5** certificate is filed.
- 3 **Bank accountability**
Bank must verify if communications were genuine.

✗ RISKS & OBLIGATIONS

- 1 **Authentication burden**
Victim must obtain **Section 5** certificate (e.g., bank's denial of sending message).
- 2 **Technical hurdles**
Proving website falsity requires expert testimony (domain logs, SSL certificates).
- 3 **No evidence for OTP/password**
Only the *source* of fraud (message/link) is relevant.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

- 1. Submit evidence with **Section 5** certificate (e.g., bank’s affidavit confirming fake message).
- 2. For WhatsApp: File legal notice to WhatsApp (Meta) for server logs.
- 3. For website: Obtain certificate from domain registrar/CERT-In.
- 4. > *Critical*: Do not submit unauthenticated screenshots; courts will reject them.

DIGITAL PERSONAL DATA PROTECTION ACT (DPDP), 2023

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1 DPDP 2023 governs data protection, not criminal fraud. It has no bearing on prosecuting phishing scams or recovering funds.

✓ STRENGTHS & RIGHTS

- 1 None relevant to this incident.*

✗ RISKS & OBLIGATIONS

- 1 None relevant to this incident.*

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

- 1. Not applicable for criminal prosecution or evidence collection.
- 2. *Note*: Victim may report data misuse to the Data Protection Board under DPDP, but this does not aid fraud recovery.

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